

26STCV14143 26STCV14143

County: los-angeles

Division: Civil Law and Motion

Department: 406

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Case Number: 26STCV14143 Hearing Date: August 5, 2026 Dept: 406

JOHN GUEVARA,

Plaintiff,

v.

BELL GARDENS,

Defendant.

Case No.: 26STCV14143

Hearing Date: August 5, 2026

[TENTATIVE]

order RE:

defendant's demurrer to complaint

BACKGROUND

On May 4, 2026, Plaintiff John

Guevara filed this action against Defendant City of Bell Gardens. The complaint alleges that Plaintiff was assaulted on two separate occasions while in the City.

On July 1, 2026, Defendant filed a

demurrer to the complaint. Plaintiff has not filed an opposition.

LEGAL STANDARD

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or by proper judicial notice. (Code Civ. Proc., § 430.30(a).) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) “California law emphasizes ultimate fact pleading (with some exceptions, notably for fraud and related torts) ‘in ordinary and concise language,’ and the test for adequacy is not absolute but ‘whether the pleading as a whole apprises the adversary of the factual basis of the claim.’” (Lim v. The TV Corp. Internat. (2002) 99 Cal.App.4th 684, 690.)

MEET AND CONFER

Before filing a demurrer or a motion to strike, the demurring or moving party is required to meet and confer with the party who filed the pleading demurred to or the pleading that is subject to the motion to strike for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer. (Code Civ. Proc., §§ 430.41, 435.5.) The Court finds that Defendant has satisfied the meet and confer requirement. (See Petrosyan Decl.)

DISCUSSION

The complaint only alleges that Plaintiff was assaulted by unidentified individuals while in the City. The complaint fails to identify any cause of action or articulate any theory of relief against Defendant. Thus, the complaint is uncertain and fails to state facts amounting to a cause of action.

CONCLUSION

Defendant’s demurrer is SUSTAINED

without leave to amend.